

SENATE No. 237

The Commonwealth of Massachusetts

PRESENTED BY:

Paul R. Feeney

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act regulating self-checkouts in grocery establishments.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Paul R. Feeney</i>	<i>Bristol and Norfolk</i>	
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>4/8/2025</i>
<i>Tackey Chan</i>	<i>2nd Norfolk</i>	<i>4/14/2025</i>
<i>Lisa Field</i>	<i>3rd Bristol</i>	<i>9/7/2025</i>
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>11/17/2025</i>

SENATE No. 237

By Mr. Feeney, a petition (accompanied by bill, Senate, No. 237) of Paul R. Feeney for legislation to limit the amount of self-checkout stations located in grocery establishments and impose fines for multiple violations. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act regulating self-checkouts in grocery establishments.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 94 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting after Section 329 the following section:-

3 Section 330. (a) For the purposes of this section, the following words shall have the
4 following meanings unless the context clearly requires otherwise:

5 "Grocery store", a business in the State of Massachusetts that earns the majority of its
6 gross income from the retail sale of groceries.

7 "Groceries", (i) Any raw or processed food or beverage intended for human consumption
8 except alcoholic beverages and marijuana products;

9 (ii) Prescription and over-the-counter drugs and related personal care and hygiene items,
10 when sold by a retailer that also sells food and beverages; and

(iii) Miscellaneous household maintenance items, such as laundry detergent and dishwashing soap, when sold by a retailer that also sells food and beverages.

"Manual checkout station", provides human assistance to shoppers, scanning, bagging and accepting payment for their purchases.

"Retail sale", the sale of groceries to a consumer for use or consumption, and not for the purpose of resale.

"Self-service checkout", an automated process that enable shoppers to scan, bag and pay for their purchases without human assistance

(b) Grocery stores shall not have more than 8 self-service checkout stations operating at any one time per location.

(c) Grocery stores with self-checkout stations shall have a minimum of 1 manual checkout station operating for every 2 self-checkout stations operating.

No more than 2 self-service checkout stations are simultaneously monitored by any 1 employee of the establishment.

An employee shall be relieved from all other duties when monitoring a self-service checkout station, including, but not limited to, operating a manual checkout station.

(d) (1) The Massachusetts Division of Standards shall have primary authority to enforce the restrictions of this section.

(2) The Massachusetts Division of Standards shall enact rules as necessary to implement this section, including a penalty matrix that imposes increasing fines for multiple violations made

31 by the same grocery store at different locations. The fine for the first violation shall be equal to
32 one full day of pay and benefits, based on the highest wage for retail clerks, for each day on
33 which there is a violation.

34 (3) Any Massachusetts resident may file a complaint with the Massachusetts Division of
35 Standards alleging a violation, free from fear of retaliation.

36 (4) Any employee alleging retaliation by their employer for making a complaint alleging
37 violations of this section may bring a cause of action in Massachusetts superior court.

38 (5) If, after 30 days of receiving notice of a violation of this section from the Division of
39 Standards, a grocery store does not comply with the regulations set forth in this section, the
40 Massachusetts Attorney General shall be given authority to enforce compliance.

41 (6) Any Massachusetts consumer alleging a violation of this section may file a complaint
42 with the Massachusetts Division of Standards. Retaliation against a consumer for complaining
43 about a violation of this section shall be an unlawful trade practice.

44 (e) If any part, section or provision of this section is found unconstitutional, illegal or
45 invalid, such a finding will affect only that part, section or provision of this section and the
46 remaining parts, sections or provisions shall remain in full force and effect.

47 SECTION 2. This act shall take effect upon passage.